

WHISTLE BLOWER POLICY

Version 10.0

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NIVA BUPA HEALTH INSURANCE COMPANY LIMITED

WHISTLE BLOWER POLICY

1 PREAMBLE

- 1.1 Niva Bupa Health Insurance Company Limited ("**Niva Bupa**" or the "**Company**") has formulated this Whistle Blower Policy ("**Policy**") with a desire to continue in its endeavor and is committed to promote highest standards of professionalism, integrity and ethical behavior in the conduct of its constituents. The Company is committed to developing a culture where it is safe for all employees to raise concerns about any poor or unacceptable practice and any event of misconduct.
- 1.2 This Policy is guided by the principles and objectives as enumerated in Section 177 of the Companies Act read with Regulation 4(2) (d) (iv) and Regulation 22 of the SEBI LODR Regulations and In the Guidelines on Corporate Governance for the Insurance Sector issued by the IRDA vide Circular IRDAI/F&I/CIR/MISC/82/5/2024 dated May 22, 2024, and all other applicable provisions made there under, as amended from time to time.

2 PURPOSE

- 2.1 This Policy is to provide a framework to promote responsible, secure whistle blowing and protect the Whistle Blower wishing to raise a concern about irregularities within the Company. The Policy aims to provide necessary and appropriate safeguards for protection to employees and a Bona Fide Whistle Blower from reprisals or victimization actions such as humiliation, harassment, or any other form of unfair treatment, for whistle blowing in good faith or instances of leak of unpublished price sensitive information.
- 2.2 The Policy aims to provide mechanism for directors, employees as well as other stakeholders of the Company an avenue to raise Bona Fide concerns if they observe unethical and improper practices, irregularities, governance weaknesses, financial reporting issues or any other wrongful conduct to myvoice@nivabupa.com and other appropriate channels.
- 2.3 The Policy will cover the following broad aspects:
- 2.3.1 Awareness of the employees on how to use available channels, and how their report will be handled.
- 2.3.2 Handling of the reports received confidentially, for independent assessment, investigation and where necessary for taking appropriate follow-up actions.
- 2.3.3 A robust anti-retaliation policy to protect employees who make reports in good faith.

3 DEFINITIONS AND INTERPRETATION

In this Policy, the following word, and expressions shall have the meanings ascribed herein:

"Agent Disciplinary Action Policy" means the Agent Disciplinary actionable grid of Niva Bupa;

“Alleged Misconduct” shall mean any violation or infringement of law, violation of the Code of Conduct, irregularities, governance weaknesses, financial reporting issues, mismanagement, actual or suspected fraud, misappropriation of Niva Bupa’s assets, monies, and/ or abuse of authority or any other act having/ potential of having similar effect/ outcome;

“Audit Committee” shall mean the audit committee of directors constituted by the Board of Niva Bupa in accordance with Section 177 of the Companies Act;

“Board” shall mean the Board of Directors of Niva Bupa;

“Bona Fide” shall mean disclosure of a Concern on the basis of a reasonable inference of unethical and improper practices or any other alleged wrongful conduct;

“Code of Conduct” shall mean the code of conduct adopted by Niva Bupa;

“Concerns” shall mean a Bona Fide written communication made in good faith by a Whistle Blower disclosing information that reflects Alleged Misconduct, Unethical Practices, or improper activity;

“Company” means Niva Bupa Health Insurance Company Limited (formerly known as Max Bupa Health Insurance Company Limited);

“Designated Official” shall mean an official designated by the Management as the designated official for the purpose of this Policy. The role and responsibilities of the Designated Official are described in [para 9] hereof;

“Director” shall mean a director on the Board of the Company;

“Disciplinary Action” shall mean a disciplinary action taken by Niva Bupa before, during and/ or after the Investigations;

“Disqualified” or **“Disqualified Concern”** shall mean a Concern which is not found to be valid and is disqualified in accordance with [para 7] hereof;

“Employee” shall mean all employees of Niva Bupa, in any class of employment, including but not limited to regular employees, contractual employees and directors of Niva Bupa.

“Employee Disciplinary Action Policy” means the employee disciplinary action policy as per the relevant HR policies;

“Executive Director” means whole- time directors of the Company;

“IRDAI” shall mean Insurance Regulatory Development Authority of India;

“Insurance Act” means the Insurance Act 1938 as amended by Insurance Laws (Amendment) Act 2015 and the regulations made thereunder to the extent applicable;

“Investigations” shall mean the investigations conducted in accordance with this Policy;

“Investigation Unit” means and includes any of the following units/ departments of the Company: (i) Ethical Governance Team (EGT), (ii) the Human Resource (HR) department of the Company and (iii) Any external consultant / party designated by the Whistle Blower

Committee;

“Management” shall mean the management of Niva Bupa;

“Misconduct” means any act or omission leading to violation or infringement of law, Company policy, Code of Conduct, irregularity, financial reporting issue, mismanagement, fraud, violation, negative brand impact or misappropriation of the Company’s asset, and/or abuse of authority in relation to the Company or any other act having/ potential of having similar effect/ outcome and/ or an attempt to commit any of the act or omission as stated above.

“Quarter” shall mean a financial quarter of a year.

“Reported Person” shall mean any person against whom a Whistle Blower has reported a Concern, or, against whom evidence is gathered during Investigations in accordance with this Policy.

“SEBI” means the Securities and Exchange Board of India;

“SEBI LODR Regulations” means the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 as amended from time to time and to the extent applicable to Insurance Companies;

“Senior Management” means the officers and personnel of the Company who are members of its core management team, excluding the Board, and shall also comprise all the members of the management one level below the Chief Executive Officer or Managing Director or Whole Time Director or Manager (including Chief Executive Officer and Manager, in case they are not part of the Board) and shall specifically include the functional heads, by whatever name called and the Company Secretary and the Chief Financial Officer;

“Unethical Practices” shall mean the acts described in Annexure I;

“Victimization” or **“Adverse Action”** shall mean an adverse action, or, failure to take appropriate Management action affecting the Whistle Blower’s employment or employment related benefits, including but not limited to salary, promotion, job profile, immunities, leaves, training benefits, and/ or any other benefits/ privileges relating to the Whistle Blower;

“Whistle Blower” means any person including Employee, Vendors, Service providers or a third party who makes any complaint as defined under para 4.1 or reports any incident or series of events which may constitute fraud, deceit, mismanagement within the Company;

“Whistle Blower Committee” shall mean the Committee constituted comprising of the Individuals listed in Annexure II;

Unless the context of this Policy otherwise requires, words of any gender are deemed to include those of the other gender.

Capitalised terms used in this Policy and not defined above shall have the same meaning as assigned to them under the Companies Act, SEBI LODR Regulations or Insurance Act, any other applicable law, or guidelines.

4 CONCERNS

4.1 An oral or written complaint or concern made by any complainant against Reported Person shall include:

- (a) Malpractice
- (b) Impropriety
- (c) Abuse
- (d) Wrongdoing
- (e) Misconduct
- (f) Fraud, bribery and corruption.
- (g) Potential Breach or violation of the Code of Conduct adopted by the Company.
- (h) Any instance of any sort of malpractice including misleading or falsification of financial or other records, accounting or auditing matters & questionable accounting practices, immoral, environment issues, criminal activities, wastage or misappropriation of Company Funds or assets, a clear abuse of authority or any other unethical conduct affecting company's interest or goodwill
- (i) Questionable accounting or auditing matters
- (j) Any Company matters involving abuse of authority
- (k) Failure or breach to implement well define Company Policies or various matters.
- (l) Knowingly breaching of any rules or regulations laid by the Company in personal capacity.
- (m) Unprofessional conduct or business activities by any stakeholder of the company.
- (n) Obtaining personal gains for settling claims of customers like compromise settlement.
- (o) Misuse of cash of the Company by custodians for personal gains.
- (p) Breach of IT security and data privacy
- (q) Criminal offence (e.g. frauds, corruption or theft) committed / likely to be committed.
- (r) Any other unethical/unlawful acts or improper conduct whether civil or criminal.
- (s) Misconduct with other Directors/Employees/Business Partners or vulnerable adults (e.g. through physical, sexual, psychological or financial abuse, exploitation).
- (t) Victimization of employees and Directors

- (u) Abuse of power (e.g. bullying/harassment).
 - (v) Bribe, corruption, money laundering or any sort of personal favours (in cash or kind), within or outside the Company for awarding contracts/assignments/job opportunity, etc. To compromise on the policies of the company.
 - (w) Failure to take appropriate step to mitigate any risk or to comply with any law or regulation which impacts the intent company's policies.
 - (x) Breach of Copyright, patent, trademarks and disclosure of confidential data or information to competitors or outsiders by Senior Management.
- 4.2 The lists as mentioned above is indicative in nature and not exhaustive Sexual Harassment complaints and HR process related grievances will be referred to Human Resources Department for investigation, resolution and closure. This Policy neither releases Employees from their duty of confidentiality in the course of their work, nor is it a route for taking up a grievance about a personal situation.
- 4.3 Such cases need to be referred to the Whistle Blower ID myvoice@nivabupa.com and redressed through the mechanisms established by Whistle Blower Committee of the Company.
- 4.4 Concerns associated with:
- (i) any grievance or issues related to employment,
 - (ii) superior–subordinate relationship,
 - (iii) relationship with peers,
 - (iv) unsatisfactory probation reports,
 - (v) Performance evaluations, and alike,
- would not be covered under this Policy

5 RAISING CONCERNS

- 5.1 All Concerns must be raised with the Designated Official, in writing through email, on My Voice email ID at - myvoice@nivabupa.com stating the facts, circumstances and/or any documents based on which a Concern has been raised, and the name and designation of the Employee raising a Concern. If Concern comes through any Employee, it must be raised on My Voice. The Whistle Blower will be sent an e-mail acknowledging receipt of the Concern.
- 5.2 All Concerns should be reported in writing by the employee as soon as possible but not later than 30 (thirty) days after he /she becomes aware of the same so as to ensure a timely and clear understanding of the issues raised.
- 5.3 Concern must provide a clear understanding of the Improper Activity involved or the issue raised. The reporting should be factual and not speculative in nature. It must contain as much relevant information as possible to facilitate a preliminary review and proper assessment.
- 5.4 The Designated Official on behalf of Whistle Blower Committee shall evaluate whether or not

an anonymous Concern should be investigated in accordance with this Policy. The Whistle Blowers may specifically request for anonymity, in which case, the identity of the Whistle Blower will be kept confidential. In any case, the identity of the Whistle Blower shall be revealed only to the extent required for Investigations and shall remain confidential with the Designated Official and/or the Whistle Blower Committee, and, with Company officials implementing Disciplinary Action, and/or, taking other decisions on Whistle Blower cases.

- 5.5 The role of the Whistle Blowers shall be limited to raising a legitimate Concern. If necessary, the Designated Official may request for written documentation and description of the events based on which a Concern has been raised.
- 5.6 All Investigations shall be carried out by or under the instructions of the Whistle Blower Committee. A Whistle Blower can neither be a member of the Whistle Blower Committee, nor shall a Whistle Blower be allowed to participate in any Investigation unless specifically called upon by the Designated Official and/or the Whistle Blower Committee.
- 5.7 Pursuant to reporting a Concern, Whistle Blowers shall not act as finders of fact, or, on their own conduct any investigative activities, nor should Whistle blowers determine any remedial action. Whistle Blowers shall neither be a member of any of the Investigation Units or the Whistle Blower Committee nor shall a Whistle Blower be allowed to participate in any Investigations unless specifically called upon by the Designated Official, or the Investigation Unit, or the Whistle Blower Committee, nor, shall be entitled to any further information on the status of a Concern and also shall not be necessarily informed on disciplinary outcome of the Investigation.
- 5.8 All reportable Concerns that come to the knowledge of the Management must also immediately be reported to the Designated Official. No attempt should be made to investigate/dispose of the Concern outside of the process referred to in this Policy. No one other than the Designated Official or the Whistle Blower Committee, shall give instructions for Investigation under this policy.
- 5.9 The Designated Official(s) may appoint individuals to support and manage the Whistle Blower mechanism on day to day basis.
- 5.10 If a Concern is raised against the Designated Official such Concern shall be investigated by the CEO & MD who may choose to follow the process as per this policy or follow such other processes as it may deem fit.
- 5.11 If a Concern is to be raised against any Executive Directors of the Company or any Concern is of the nature of serious Financial Fraud, such Concern on receipt may be forwarded in confidence directly to the Chairperson of the Audit Committee for investigation. The Chair of Audit Committee may choose to follow the process as per this Policy or follow such other processes as it may deem fit.
- 5.12 The Appointed Actuary and the statutory/ internal auditors have the duty to 'whistle blow', i.e., to report in a timely manner to the IRDAI if they are aware that the insurance company has failed to take appropriate steps to rectify a matter which has a material adverse effect on its financial condition.

6 GOOD FAITH

- 6.1 A Concern shall be deemed to have been communicated in good faith by a Whistle Blower unless there is reasonable ground to believe the basis for communication of any wrongful conduct, or unethical and/or improper practices as perceived by the Whistle Blower.
- 6.2 The Whistle Blower should act in good faith, on reliable information. The Whistle Blower should not report any Concern acting on any mala fide, frivolous or malicious action.
- 6.3 Although a Whistle Blower is not expected to prove the truth of an allegation, the Whistle Blower should be able to demonstrate that the Concern is being reported in good faith.

7 DISQUALIFICATIONS

- 7.1 This Policy is not a grievance platform for its Employees, or, for raising mala fide, malicious and frivolous allegations. Employees are urged to make a complaint in good faith and strictly avoid any abuse of this power, i.e. make any report in bad faith, mala fide, frivolous or malicious.
- 7.2 Only Bona Fide Concerns raised in good faith may be raised without fear of any adverse action.
- 7.3 A Concern shall deem not to be raised in good faith when a Whistle Blower has no personal knowledge of the existence of any fact in respect of a Concern reported by him/her, or, if the Whistle Blower knew or can reasonably be presumed to know that the Concern reported by the Whistle Blower is mala fide, malicious and/or frivolous.
- 7.4 Protection under this Policy would not mean protection from disciplinary action arising out of false or bogus allegations made by a Whistle Blower knowing it to be false or bogus or with a mala fide intention.
- 7.5 In the event it is established beyond doubt that this Policy is being used for making false allegations, the Management at its sole discretion shall be at liberty to initiate appropriate Disciplinary Action in accordance with the Company rules, policies and procedures, as the Management shall, at its sole discretion, deem fit, which could be up to and including termination.
- 7.6 The Whistle Blower Committee would reserve its right to take /recommend appropriate Disciplinary Action against Whistle Blowers who make multiple Protected Disclosures, which have been subsequently found to be mala fide, frivolous, baseless, malicious, or reported otherwise than in good faith.
- 7.7 This Policy may not be used as a defense by a Reported Person against whom an adverse personnel action has been taken on account of any Concern reported against him

8 CONFIDENTIALITY

- 8.1 Niva Bupa is committed to maintaining confidentiality of the Concern and undertakes that, except to the extent required to give effect to the implementation of this Policy, the identity of the Whistle Blower, respondent, witnesses, information relating to investigation proceedings, recommendation of the Whistle Blower Committee and action taken by Niva Bupa shall be kept confidential and not be communicated, published or made known to the public, press and media in any manner.
- 8.2 The Investigation Unit, while exercising such powers, shall take reasonable steps as necessary

to ensure that the identity of the person making Concern has not been revealed or compromised.

- 8.3 By this Policy, no Employee is released from their duty of confidentiality in the course of their work, nor is this a route for taking up personal grievances in respect of any situation.*

9 ROLE AND RESPONSIBILITIES OF THE DESIGNATED OFFICIAL

- 9.1 The Director & Chief Sustainability & HR Officer and the Director & Chief- Legal, Compliance, Secretarial & Regulatory Affairs have been appointed as the Designated Officials by the Whistleblower Committee for the purpose of this policy.

- 9.2 In addition to any other responsibilities as may be detailed elsewhere in this Policy, following shall be primary responsibilities of the Designated Official:

9.2.1 the Designated Official on behalf of Whistle Blower Committee shall be the sole contact person for all Employees in respect of this Policy, and shall receive all Concerns from the Employees;

9.2.2 the Designated Official shall evaluate whether or not a Concern, including any Concerns received anonymously, should be investigated further.

9.2.3 the Designated Official on behalf of Whistle Blower Committee shall be entitled to request for any and all documentation and/or information in respect of a reported Concern from the Whistle Blower;

9.2.4 the Designated Official shall co-ordinate with the Whistle Blower and the Whistle Blower Committee; and

9.2.5 the Designated Official along with Whistle Blower Committee shall be responsible for closure of all Concerns.

10 INVESTIGATION PROCESS

- 10.1 All Concerns reported under this Policy will be thoroughly investigated by the team/ investigator appointed in line with provisions of clause 5.9, 5.10 and 5.11 of this Policy. If any member of the investigation team, Designated Official or the Whistle Blower Committee has a conflict of interest in any given case, then he/she/they should recuse himself/herself and the other members of the Whistle Blower Committee should deal with the matter at hand.

- 10.2 Upon receipt of a valid Concern, the Designated Official shall evaluate whether or not a Concern should be investigated further. The Designated Official may, at its sole discretion, make *prima facie* investigations to decide if the Concern has been made Bona Fide, in good faith, and is not a Disqualified Concern.

- 10.3 Director & Chief Sustainability & HR Officer and Director & Chief Legal, Compliance, Secretarial & Regulatory Affairs jointly or severally shall evaluate concerns against individuals designated VP and above, while the Senior Vice president & Head – Compliance & Ethical Governance shall evaluate the concern against individuals designated below VP level.

- 10.4 If the Concern is found to be valid, the Designated Officials shall, at its sole discretion, allocate

a Concern to any of the Investigation Units for investigation.

- 10.5 The Designated Officials may at their discretion, consider involving any Investigators for the purpose of Investigation.
- 10.6 The relevant Investigation Unit designated by the Designated Officials in accordance with above, shall initiate Investigations in respect of a Concern and submit an investigation report to the Whistle Blower Committee.
- 10.7 During any such Investigations, the Investigation Unit may request any documents and/or information etc.
- 10.8 The Designated Official or the Whistle Blower Committee shall be entitled to dismiss any Concern if it is determined that the Concern has no valid basis or requires no further investigation.
- 10.9 The decision to conduct an investigation by itself is not an accusation and is to be treated as a neutral fact-finding process. The outcome of the investigation may not support the conclusion of the Whistle Blower that an improper or unethical act was committed.
- 10.10 The identity of a Whistle Blower and the Reported Person will be kept confidential to the extent possible given the legitimate needs of law and the investigation.
- 10.11 Reported Person will normally be informed of the allegations at the outset of a formal investigation and have opportunities for providing their inputs during the Investigation.
- 10.12 Reported Person shall have a duty to co-operate with the investigation to the extent that such co-operation will not compromise self-incrimination protections available under the applicable laws.
- 10.13 Evidence shall not be withheld, destroyed or tampered with, and witnesses shall not be influenced, coached, threatened or intimidated by the Reported Person.

11 SCOPE AND PROCEDURES OF INVESTIGATIONS

- 11.1 The Investigation Unit shall conduct and/or cause that all Investigations are conducted in a fair and judicious manner.
- 11.2 The Whistle Blower Committee shall be empowered to frame internal policies and/or regulations from time to time, for the conduct of all Investigations.
- 11.3 The Investigation Unit shall make and provide to the Whistle Blower Committee detailed written report, in lines with the process defined in this regard. The Investigation report shall include the following:
 - 11.3.1 facts in respect of the Concern raised;
 - 11.3.2 record whether or not Concerns similar to the Concern being investigated have been raised prior to the Concern, which is being investigated, and outcomes thereof;
 - 11.3.3 the implications/ outcome, including financial irregularity and/ or any other loss caused as a result of the event or action for which the Concern has been raised;

- 11.3.4 procedure followed during the Investigation process, including the documents perused, and Employees and/ or any other person interviewed;
- 11.3.5 findings of the Investigation Unit, and the reasons there for; and
- 11.3.6 recommendations of the Investigation Unit including any disciplinary actions to be taken.
- 11.4 The Whistle Blower Committee will determine whether the allegations stand substantiated or not and shall take into consideration the Report and recommendations of the Investigation Unit including any disciplinary actions required to be taken in respect of a Concern.
- 11.5 The decision on disciplinary actions would be taken by the Whistle Blower Committee as per the Employee Disciplinary Action Policy or Agent Disciplinary Action Policy and any other policy of the Company as the case may be.
- 11.6 The Reported Person(s) may or may not be informed of the allegations at the outset. The Reported Person shall be provided with adequate opportunities for providing their inputs in respect of any such Investigations.
- 11.7 The Reported Person shall provide all necessary co-operation and assistance to the Investigation Unit during the course of Investigations. However, there shall be no violation of any rights against self-incrimination that such Reported Person shall have available to him/her in accordance with applicable laws.
- 11.8 No allegation of wrongdoing against a Reported Person shall be considered as maintainable unless there is good evidence in support of the allegation.
- 11.9 The Reported Person shall not have any right to interfere with the Investigations.
- 11.10 Unless the Whistle Blower Committee deems it necessary not to do so, the Reported Persons will be granted the right to adequately respond to material findings and evidence gathered during the course of Investigations.
- 11.11 The Company may also appropriately address any controls weaknesses and process gaps identified during the course of Investigations or in the Report.

12 POWERS OF INVESTIGATION UNITS

- 12.1 The Investigation Unit may call upon, for the purpose of any inquiry, interview with any Employee who, in its opinion, shall be able to furnish information or produce documents relevant to the inquiry or assist in the inquiry and further require to furnish any such information or produce any such document as may be necessary for the said purpose.
- 12.2 Technical and other resources may be drawn upon as necessary to augment the Investigation. All Investigators shall be independent and unbiased both in fact and as perceived.
- 12.3 Investigators have a duty of fairness, objectivity, thoroughness, ethical behavior, and observance of legal and professional standards.
- 12.4 For the purpose of any such inquiry, the Investigation Unit shall have all the powers in respect of the following matters, namely: -

- 12.4.1 requiring and enforcing the attendance of any Employee and examining him / her and also to request any other person to attend and be examined;
- 12.4.2 requiring the discovery and production of any document;
- 12.4.3 receiving evidence on affidavits;
- 12.4.4 requisitioning any record or copy thereof from office/Employee;
- 12.4.5 delegating power of the examination of witnesses or documents;
- 12.4.6 such other matters as may be prescribed.
- 12.4.7 No obligation to maintain secrecy can be taken as defense by any Employee in the proceedings before the Investigation Unit.

13 REPORTING TO AUDIT COMMITTEE/ BOARD

- 13.1 An update on all Whistle Blower cases will be provided to the Audit Committee every quarter.
- 13.2 The Audit Committee may, if it deems fit, place a Concern or update before the Board with its recommendations.

14 CLOSURE OF COMPLAINT:

- 14.1 False alarms and complaints which could not be proven will be considered as “Closed” immediately on conclusion of Investigation and briefed to that effect to the Designated Official. Closure status would be approved by the Designated Official. In case of genuine complaints, a case will be considered as “Closed” once following actions, as applicable and appropriate have been taken:
 - 14.1.1 Action against person/persons against whom charges were proven.
 - 14.1.2 Initiation of recovery of the losses suffered due to fraud, if any
 - 14.1.3 Police complaints being filed.
 - 14.1.4 Reporting on Fraud Monitoring Report.

15 NON-RETALIATION AND PROTECTION

- 15.1 Niva Bupa accords and undertakes to provide complete protection to the Whistle Blowers from any Victimization and/or unfair treatment by virtue of his/her having reported a Bona Fide Concern in accordance with this Policy.
- 15.2 The identity of the Whistle Blower shall be kept confidential by the Designated Official and the Whistle Blower Committee.
- 15.3 Niva Bupa is committed to ensure that no Adverse Action is taken against Whistle Blowers. However, Niva Bupa reserves the right to take any appropriate action against such Whistle Blowers, if they are found to be non-compliant with policies, regulations, laws or ethics or if any performance related lapses are noted.

- 15.4 If any person is being victimized or likely to be victimized on the ground that he/she had filed Concern or made disclosure or rendered assistance in inquiry under this Policy, he/she may file an application before the Designated Official seeking redress in the matter, and Designated Official shall take such action, as deemed fit and may give suitable directions to the Whistle Blower Committee, as the case may be, to protect such person from being victimized or avoid his Victimization.
- 15.5 No unfair treatment will be meted out to a Whistle Blower by virtue of his/her having reported a Concern under this Policy. The Company, as a policy, condemns any kind of discrimination, harassment, victimization or any other unfair employment practice being adopted against Whistle Blowers. Complete protection will, therefore, be given to Whistle Blowers against any unfair practice like retaliation, threat or intimidation of termination/suspension of service disciplinary action, transfer, demotion, refusal of promotion, or the like including any direct or indirect use of authority to obstruct the Whistle Blower's right to continue to perform his/her duties/functions including making further Concerns.
- 15.6 Any other Employee or Director assisting in the said Investigation shall also be protected to the same extent as the Whistle Blower.
- 15.7 The Company will take steps to minimize difficulties, which the Whistle Blower may experience as a result of making the Concern.

16 RESPONSIBILITIES OF WHISTLE BLOWER

- 16.1 The intent of this Policy is to bring genuine and serious issues to the fore and it is not intended for petty disclosures. Employees are expected to exercise their rights under this Policy in a judicious manner by adhering to the following guidelines.
- 16.1.1 Avoid anonymity when raising a concern.
- 16.1.2 Follow the procedures prescribed in the Policy for making a disclosure.
- 16.1.3 Bring to early attention of the Company, any improper practice he/she become aware of delay in reporting may lead to loss of evidence and also financial loss for the organization.
- 16.1.4 Co-operate with investigating authorities, maintain full confidentiality.

17 AWARENESS

- 17.1 Reasonable efforts must be taken by the HR and Ethical Governance team to spread awareness of the Policy to all Employees/ Service Provider or any other person associated with the Company.
- 17.2 Periodic communication will be circulated to Employees & , or any other person associated with the Company by Investigation unit team to spread awareness on the Policy.

18 APPEAL PROCEDURE

Any appeal on the decision of the Whistle Blower Committee may be referred to the CEO & Managing Director of Niva Bupa. The decision of CEO & Managing Director shall be final in all such matters. However, the appeal must be made within 30 days (calendar days) of the communication of decision.

19 POLICY OWNERSHIP

- 19.1 This Policy is co-owned by the Director & Chief Sustainability & HR Officer and Director & Chief Legal, Compliance, Secretarial & Regulatory Affairs. Please contact your department head for any clarifications or write to myvoice@nivabupa.com for any further queries/ clarifications.

20 AMENDMENT

- 20.1 Niva Bupa has the right to amend or modify this Policy in whole or in part, at any time without assigning any reason, whatsoever. However, no such amendment or modification will be binding on the directors, employees and stakeholders unless the same is notified to the Directors and Employees in writing and displayed on the website of the Company.

ANNEXURE – I | UNETHICAL PRACTICES

Types of Concerns: An Employee/Service Provider or any other person associated with the Company in any manner may raise concerns relating to violation of any of the following, including policies, regulations, laws, ethical standards of Niva Bupa in connection with but not limited to:

Accounting and Auditing Matters – including unethical recording of business and financial transactions. (Examples include and are not limited to misstatement of revenues, expenses, misapplication of accounting standards)

Conflict of Interest - a conflict of interest is a situation in which an Employee has a personal interest, which may influence his or her official duties. (Examples include and are not limited to hiring of relatives without proper disclosures, approving a vendor who is related, benefiting from business information for his or her own account/ benefit)

Embezzlement – to misappropriate property entrusted to one's care for one's own use. (Examples include and are not limited to inflation or falsification of bills, misappropriation of customer funds such as premium payments)

Falsification of Contracts, Reports or Records – falsification of records consists of altering, fabricating, falsifying, or forging all or any part of a document, contract or record for the purpose of gaining an advantage, or misrepresenting the value of the document, contract or record.

Malpractice includes cases of bribery, illegal, unethical or immoral behaviour or breach of process, procedure, codes or policies for personal benefit or for causing loss to the Company or Third Party.

Sales Misconduct – Any wilful act of making false commitments, false promises, mis-selling to customers resulting in loss to the customer/ the Company or adverse impact on the Company's reputation.

Securities Violations – an infringement of the personal trading guidelines or indulging in insider trading, through the use of material non-public information for one's personal benefit, or of a friend or any third party.

Theft – The act of stealing of data or of property/ funds belonging to Niva Bupa.

Violation of Company Policies – Wilful or innocent actions that are in direct violation of Niva Bupa policy, procedures, code of conduct, and/ or implied contractual responsibilities. (Examples include and are not limited to violation of anti-corruption Policy, gift, meals and entertainment Policy, etc)

Violation of law/ regulations – includes wilful or innocent violation of provisions of various laws applicable to Niva Bupa.

Workplace Misconduct – including matters related to behaviour of Employees at the workplace, harassment including sexual harassment, unfair treatment of Employees etc

Miscellaneous - abuse of authority; breach of contract; negligence causing substantial and specific danger to public health and safety; manipulation of Niva Bupa's data/ records; financial irregularities, including fraud, or suspected fraud; criminal offence; pilferage of confidential/ propriety information; wastage/ misappropriation of Niva Bupa's funds/ assets; breach of employee code of conduct or rules or policies; any other unethical, biased favoured, imprudent event.

Others – shall include categories of Concerns which do not fall under the categories above but may

make the Employee suspect a breach of law or ethical principles or of any non-compliant activity.

ANNEXURE II | CHARTER OF WHISTLE BLOWER COMMITTEE

A. Whistle Blower Committee:

The Whistle Blower Committee shall comprise of the following:

- a) Director & Chief Sustainability & HR Officer as Chairperson of the Whistle Blower Committee
- b) Director & Chief – Legal, Compliance, Secretarial & Regulatory Affairs as a member of Whistle Blower Committee,
- c) Chief Risk Officer as a member of Whistle Blower Committee
- d) Any other members as may be co-opted on a case-by-case basis for effective redressal of a Concern.

Permanent Invitee:

- 1. Head of Internal Audit

B. Designated Official:

- a) Designation: Director & Chief Sustainability & HR Officer and Director & Chief – Legal, Compliance, Secretarial & Regulatory Affairs
- b) Email: myvoice@nivabupa.com
- c) Tel: 0124-6354900

C. Audit Committee Chairman:

Address: Chairman, Audit Committee – Niva Bupa Health Insurance Company Limited, 3rd Floor, Capital Cyber Scape, Sector -59, Gurgaon-122011